

DISSENTING OPINION BY M. ANZILOTTI.

[*Translation.*]

In my opinion the Court should have ruled that the request for an interpretation by the German Government could not be entertained; and that on the following grounds:

1.—The question which arises in the first place is what is to be understood by a “dispute as to the meaning or scope of the judgment” in the terms of Article 60 of the Statute.

I must begin by saying that I regard proceedings for interpretation as contentious proceedings, the subject matter of which is constituted by the dispute contemplated in the article, and in which the Court has to give judgment upon the submissions of the Parties just as in any other contentious proceedings. In my opinion Article 60 of the Statute contains a clause establishing the compulsory jurisdiction of the Court for a certain category of disputes.

The first object of Article 60 being to ensure, by excluding every ordinary means of appeal against them, that the Court’s judgments shall possess the formal value of *res judicata*, it is evident that that article is closely connected with Article 59 which determines the material limits of *res judicata* when stating that “the decision of the Court has no binding force except between the Parties and in respect of that particular case”: we have here the three traditional elements for identification, *persona*, *petitum*, *causa petendi*, for it is clear that “that particular case” (*le cas qui a été décidé*) covers both the object and the grounds of the claim.

It is within these limits that the Court’s judgment is binding, and it is within these same limits that Article 60 provides that any Party shall have the right, in the event of a dispute, to request the Court to construe it. It appears to me to be clear that a binding interpretation of a judgment can only have reference to the binding portion of the judgment construed.

2.—To say that the request for an interpretation can only relate to the binding part of the judgment is equivalent to

saying that it can only relate to the meaning and scope of the operative part thereof, as it is certain that the binding effect attaches only to the operative part of the judgment and not to the statement of reasons.

The grounds of a judgment are simply logical arguments, the aim of which is to lead up to the formulation of what the law is in the case in question. And for this purpose there is no need to distinguish between essential and non-essential grounds, a more or less arbitrary distinction which rests on no solid basis and which can only be regarded as an inaccurate way of expressing the different degree of importance which the various grounds of a judgment may possess for the interpretation of its operative part.

When I say that only the terms of a judgment are binding, I do not mean that only what is actually written in the operative part constitutes the Court's decision. On the contrary, it is certain that it is almost always necessary to refer to the statement of reasons to understand clearly the operative part and above all to ascertain the *causa petendi*. But, at all events, it is the operative part which contains the Court's binding decision and which, consequently, may form the subject of a request for an interpretation.

3.—Having said this, it seems to me that in so far as the first of the submissions made by the German Government is concerned, the Court need merely place on record the following declaration, which is to be found on page 6 of the *Observations of the Polish Government upon the request for interpretation of Judgments Nos. 7 and 8*:

[*Translation.*]—"Passing now from the grounds for Judgment No. 7 to its operative part, it should be observed that the Polish Government has never claimed, nor does it now claim, that by the latter a right was reserved to that Government of cancelling by process of law the agreement of December 24th, 1919, and the entry in the land registers, in pursuance of this agreement, of the Oberschlesische as owners. Such a reservation, or even a recognition of the right in question, would moreover have been purposeless."

This declaration is incompatible with the existence of any dispute coming within the terms of Article 60 of the Statute,

as interpreted above, and reduces the divergence between the views of the two Governments to a question of words.

As to the second of the submissions made by the German Government, the situation is different. In my opinion, the real proposition, which is concealed in somewhat obscure language, must be understood as follows: The Court, on being made cognizant of the German Government's Application of May 15th, 1925, found it necessary to give a decision, and did in fact do so, in regard to the Oberschlesische's right of ownership, and this decision is final and binding even in respect of the claim for compensation now pending before the Court.

I shall now proceed to consider the question whether a request for an interpretation having this object can be entertained.

4.—It is a well-known principle that the objective limits of *res judicata* are determined by the claim.

The German Government's claim on which Judgment No. 7 was based was, in so far as relates to the present case, formulated as follows in No. 2 *a* of the submissions of that Government:

"To give judgment that the attitude of the Polish Government in regard to the Oberschlesische Stickstoffwerke and Bayerische Stickstoffwerke Companies was not in conformity with Article 6 and the following articles of the Geneva Convention."

No claim for restitution or compensation was then made by the German Government, which, according to the statements of its Agent, only sought to obtain a declaratory judgment. It should also be recalled that the claim reproduced above and relating to the Oberschlesische and Bayerische Companies was submitted as being the application in an individual case, chosen from amongst several of a more general claim, that is to say the claim to the effect that Articles 2 and 5 of the Polish law of July 14th, 1920, were not in conformity with Article 6 and the following articles of the Geneva Convention.

In accordance with the German Government's claim, the Court, after having decided that the application both of Article 2 and of Article 5 of the Polish law of July 14th, 1920, in Polish Upper Silesia constituted a measure contrary to

Article 6 and the following articles of the Convention in question, laid down in paragraph 2 *a* of the operative part of the judgment, "that the attitude of the Polish Government in regard to the Oberschlesische Stickstoffwerke and Bayerische Stickstoffwerke Companies was not in conformity with Article 6 and the following articles of the Geneva Convention".

5.—It is certain that before arriving at this conclusion the Court had also to consider the question whether, under German municipal law, the Oberschlesische Company was indeed the owner of the Chorzów factory ; for only if that was the case would the dispossession of the Company by the Polish Government constitute a measure contrary to the Geneva Convention.

And the Court did in fact say that it would consider the question from this point of view also. At the same time, however, it expressly stated that, in the exercise of the jurisdiction bestowed by Article 23 of the Geneva Convention, it would only consider as an incidental or preliminary point the question whether any rights existed under German law.

It is therefore clear that the decision in regard to the question whether the Oberschlesische was the owner of the property of which it was dispossessed, can only be regarded as an incidental or, more exactly, as a preliminary decision to that which the Court had to give upon the claim of the Applicant. The German Government expressly admits this.

6.—No one denies or could deny that the Oberschlesische's right of ownership is to be regarded as having been established once and for all in so far as concerns the question decided by Judgment No. 7 ; that is to say, the non-conformity of the attitude adopted by the Polish Government in regard to that Company with Article 6 and the following articles of the Geneva Convention.

It is, moreover, clear that, under a generally accepted rule which is derived from the very conception of *res judicata*, decisions on incidental or preliminary questions which have been rendered with the sole object of adjudicating upon the Parties' claims (*incidenter tantum*) are not binding in another case.

Does this general rule also cover the case of an action for indemnity following upon a declaratory judgment in which the preliminary question has been decided?

In my opinion that is in reality the question submitted to the Court; and there seems to me to be no doubt that that question is neither a question involving the interpretation of the operative part of Judgment No. 7, which has been referred to earlier in this note, nor a question involving the interpretation of the operative part of Judgment No. 8, which was merely a decision as to the jurisdiction of the Court to take cognizance of the action for indemnity. It is a question which exclusively relates to proceedings actually pending before the Court, and must consequently be considered and adjudicated upon in those proceedings and not by the indirect method of an interpretative judgment.

7.—In coming to this conclusion, I have relied upon principles obtaining in civil procedure; this I feel justified in doing for the following reasons:

As I have already observed, the Court's Statute, in Article 59, clearly refers to a traditional and generally accepted theory in regard to the material limits of *res judicata*; it was only natural therefore to keep to the essential factors and fundamental data of that theory, failing any indication to the contrary, which I find nowhere, either in the Statute itself or in international law.

In the second place, it appears to me that if there be a case in which it is legitimate to have recourse, in the absence of conventions and custom, to "the general principles of law recognized by civilized nations", mentioned in No. 3 of Article 38 of the Statute, that case is assuredly the present one. Not without reason was the binding effect of *res judicata* expressly mentioned by the Committee of Jurists entrusted with the preparation of a plan for the establishment of a Permanent Court of International Justice, amongst the principles included in the above-mentioned article (Minutes, p. 335).

(Signed) D. ANZILOTTI.